STANDARD OPERATING PROCEDURE			I-3700
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **03/31/22**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE INVESTIGATIONS DIVISION	RESOURCES CALEA 40.2.3			
SUBJECT CRIMINAL INTELLIGENCE PROCEDURES	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to establish guidelines for the gathering of Criminal Intelligence.

II. Policy:

The Sarpy County Sheriff's Office shall gather, analyze, and produce intelligence information directed toward the identification of specific individuals or organizations suspected of criminal activity and/or present a potential threat to the public, performing these activities with due respect for the rights of those involved, and disseminating the information only to authorized individuals as prescribed by applicable local, state and federal laws, regulations, administrative rules, and professional and ethical criminal intelligence practices.

III. Procedure:

A. Intelligence Collection:

1. All employees are responsible for gathering and reporting information in support of, and acting on information produced by, the intelligence functions within the Sarpy County Sheriff's Office.

2. The Investigations Division shall have the primary responsibility for coordinating activities that include planning and managing intelligence priorities. They are responsible for collecting, evaluating, collating, analyzing, and disseminating information in support of the intelligence function.

3. The criteria for the collection of criminal intelligence information are there must be a reasonable and legitimate reason to do so. Information concerning political, religious, racial, sexual, or personal beliefs will not be

collected or retained unless such information is relevant to a report of known or suspected criminal activity or a threat. Examples include, but are not limited to:

a) Organized crime and/or gang related activity.
b) Terrorist or subversive activity involving the use of violence or the threat of violence to attain political, religious, or ideological goals by instilling fear, using intimidation, or coercion.
c) Vice activity relating to prostitution, bookmaking, gambling, child pornography, and obscenity.
d) White collar offenses relating to computer crimes.
e) Controlled substance activity involving the illegal manufacture, possession, use, sale, or distribution of drugs or alcohol.
f) Civil disturbance related activities.
g) Persons deemed a threat to a person or persons.

B. Prohibited Activities:

1. No employee will engage in any illegal activity in the collection of data.

2. No employee will direct another individual to engage in the collection of information by illegal means.

3. No employee shall use or disperse confidential data for political or economic gain.

4. No employee shall release information or records to anyone outside the department without prior supervisory approval. (It is understood that the purpose of a local or federal task force is to share information and resources to achieve a legitimate law enforcement purpose. Therefore, any employee assigned to a task force has permission to share information to aid in achieving that legitimate purpose.)

C. Training:

1. Any employee who maintains or accesses a bona fide intelligence data base shall have training on 28 CFR Part 23. 28 CFR Part 23 is the guideline for law enforcement agencies that operate federally funded multijurisdictional or interjurisdictional criminal intelligence systems.

D. Information Security:

1. Criminal Intelligence files shall be under the control of the Investigations Division Commander or designee and kept separate from other records. All files shall be physically and electronically secured, as appropriate. Computer

systems that store intelligence data shall be secure from unauthorized access.

2. Access to the information contained in Criminal Intelligence file will be closely monitored. The identity of the individual who provided the information will be protected, as determined by requirements of the individual case.

3. Intelligence Information collected and analyzed through Criminal Intelligence Procedures will be disseminated only after the following has been established:

a) The accuracy and reliability of the information.
b) Whether the dissemination of the information would compromise the identity of the source of information.
c) The right and "need to know" of the person receiving the information.

4. It shall be the responsibility of an Investigations supervisor to ensure all recipients of disseminated intelligence information have not misrepresented themselves, are authorized to make the request or receive the information, have a "need to know," and that all disseminations are accomplished in a manner consistent with state and federal law.

E. Purging Information:

1. The Investigations Division Lieutenant is responsible for ensuring files:

a) Are maintained in accordance with the goals and objectives of the Sarpy County Sheriff's Office.
b) Include information that is accurate, timely, and relevant.
c) Are audited on an annual basis and purged as needed.

F. Historical Files: Historical Files may be retained for as long as the information has value in understanding the criminal network and its impact on Sarpy County.

G. Annual Review: The Investigations Division Commander or designee will conduct and annual review the policies and procedures related to Criminal Intelligence collection and issue any updates as needed. The annual review will consider recent court decisions and national best practices.